Hanafi vs Maliki

Prediction-led study order • 9488/22

Updated 24 October 2026 • Exam: 27 October, 08:00

Highest priorities now come first. Labels identify where to deepen preparation, not your current ability or guaranteed exam topics.

Learn in this order

1. DIVORCE — LEARN DEEPLY • pp. 2–4
Court remedies, coercion, quru', financial provision and shared rules.

2. WORSHIP — LEARN DEEPLY • pp. 5–8
Combining and timing calculations, then wudu obligations/nullifiers.

3. FINANCE/JOBS — APPLY CONFIDENTLY • pp. 9–10
Debt, riba, mortgages and actual employment duties.

4. SOURCES/METHOD — EXPLAIN REASONING • pp. 11–13
Shared revelation, Hadith quality, Medinan practice and legal reasoning.

Backup • pp. 14–17: inheritance first; marriage/kinship next; Friday quick review. All remain examinable.
Accuracy tools • pp. 18–21: syllabus/attribution audit and early Hanafi disagreements.
Technique/recall • pp. 22–23. Clickable references follow.

Prediction limits: this order adapts the earlier past-paper-gap review, not a fresh statistical forecast or Cambridge advice. Past absence does not make a topic due; recently tested does not mean eliminated. The earlier pack's "red-hot", "skip" and guaranteed-mark language was too strong.

Section B needs separate revision: this two-school guide does not cover all Units 2.6–2.9. [1]
Educational revision, not a personal fatwa.

PRIORITY 1 — Divorce

LEARN DEEPLY • Unit 2.2

Why first? Divorce was the leading Section A target in the earlier prediction pack. This is a revision judgement, not knowledge of the coming paper. Learn conditions, evidence and consequences, not just "Hanafi X / Maliki Y".

Your mastery targets

1. Distinguish **talaq, khul', judicial dissolution and tafwid**. Explain the mechanism and who initiates it; not every separation is a husband's talaq.
2. Distinguish **raj'i** (revocable during 'iddah) from **ba'in** (not restored by simple unilateral revocation). Irrevocability has different degrees and consequences.
3. Compare **genuine coercion**, **harm/discord**, and **failure of maintenance**. Explain Maliki judicial remedies versus narrower classical Hanafi grounds. Moral condemnation and legal remedies are separate questions. [5, 6]
4. Explain **quru'**: Hanafi menstrual periods versus Maliki periods of purity. Do not assume both mean three complete future cycles. [32]
5. Compare **maintenance and housing for a non-pregnant irrevocable divorcee**. Separate this from revocable divorce and pregnancy. [7]

Shared rules are also worth learning

Both normally treat khul' as an irrevocable counted divorce; mainstream classical triple talaq counts three. Do not import a Hanbali khul' distinction or a later individual preference as the standard Maliki rule. [24, 25]

Closed-book test

Explain three paired differences, one shared rule and two named attributions. Then answer: **"Do Hanafi and Maliki divorce rules protect spouses in the same ways?"**
AO2: weigh court access, financial protection and safeguards. Neither school is universally easier or stricter.

Divorce: coercion and judicial relief

P1 — LEARN DEEPLY

Spoken talaq under genuine coercion
Hanafi — Mughniyya reports: generally effective in classical law.
Maliki — Mughniyya reports: qualifying coercion prevents legal effectiveness.
Coercion has defined conditions; ordinary pressure is not automatically coercion. [5]

Judicial dissolution for harm (darar)
Classical Hanafi — Mughniyya reports: a narrower set of dissolution grounds; one cannot simply assume every serious marital problem creates the same court remedy.
Maliki — Mughniyya reports: broader judicial relief for established harm and serious discord, with proof, reconciliation and arbitral procedures as appropriate. [6]

Failure to provide maintenance
Classical Hanafi — Mughniyya reports: inability alone is not ordinarily a dissolution ground in the same way; financial enforcement or authorised borrowing can be relevant.
Maliki — Mughniyya reports: can provide a basis for judicial separation, subject to its conditions. [6]

Why this matters

The Maliki approach can give a wife access to separation without relying solely on her husband's willingness to pronounce talaq or agree to khul'. The comparison concerns remedies, not whether abuse is morally acceptable in either school.

Modern law caveat: Hanafi-majority jurisdictions may borrow Maliki grounds. A present-day national statute is not automatically classical Hanafi fiqh.
Evidence anchors: Qur'an 4:35, arbitration; 2:229, kind retention or release.
Safety: actual divorce cases require qualified case-specific advice.

‘Iddah and financial provision

P1 — LEARN DEEPLY

Meaning of quru’ in Qur’an 2:228
Hanafi — reported by Jordan Iftaa: three menstrual periods.
Maliki — reported by Jordan Iftaa: three periods of purity (tuhr). A qualifying purity interval in progress at divorce can count, so do not simplify this to “three complete future cycles” for both. [32]

Non-pregnant irrevocable divorcee
Hanafi — Mughniyya reports: generally maintenance and accommodation during ‘iddah, subject to its conditions.
Maliki — Mughniyya reports: accommodation, but not ordinary maintenance, under the relevant rules.
Revocable divorce: both provide support under relevant conditions. Pregnancy creates provision duties. [7]

Shared rules, not differences

• Mainstream classical triple talaq generally counts as three in both schools.
• Ordinary anger does not automatically invalidate divorce.
• Witnesses are not normally a talaq validity condition.
• Talaq during menstruation is generally sinful yet effective.
• Khul‘ is normally treated as an irrevocable counted divorce in both, although its compensation and consequences have detailed rules. [5, 24, 25]

Keep these concepts separate

Talaq: divorce declaration.
Khul‘: compensated release, classically normally consensual.
Judicial dissolution: relief on a recognised legal ground.
An agreement to return mahr is not an automatic description of every court separation.

AO2: the quru’ disagreement illustrates differing interpretations of the same revelation, not different Qur’ans.

PRIORITY 2 — Worship

LEARN DEEPLY • Unit 2.1

Earlier prediction targets: combining and timings first, then wudu. Past absence does not make a topic due.

A. Combining and prayer times

• Distinguish **true jam'**, **jam' suri** and **qasr**. Name the two combinable pairs; Fajr is not one of them.
• Contrast the Hanafi Hajj restriction with qualified Maliki travel, illness and weather concessions. Not every journey or rainy moment qualifies. [9, 11]
• Calculate 'Asr: **additional** shadow plus noon shadow. Abu Hanifa: twice; Abu Yusuf/Muhammad: once. Compare Maliki law. [17, 37]
• Distinguish Fajr validity from preference. Maghrib starts at sunset in both; qualify Maliki choice/necessity times. [49]

B. Wudu: turn lists into cases

Explain **intention, whole/quarter-head wiping, rubbing and continuity** using al-Quduri/al-'Ashmawi. Compare flowing blood, mouthful vomiting, relevant touch and direct genital contact. [27, 28, 37]

Do not import Hanbali rules: sequence, mouth/nose and ears are Sunnah in wudu in both schools here; camel meat is not itself a nullifier. Distinguish validity from Sunnah completion.

Closed-book test

1. For a 1 m object with a 0.2 m noon shadow, explain **2.2 m versus 1.2 m**.
2. Explain why close-together prayers might still be jam' suri.
3. Compare washing without intention/rubbing, wiping only a quarter-head. Would changing order alone create the same contrast?
AO2: explain differing interpretation without claiming either school ignores the Sunnah.

Prayer times and combining

P2 — LEARN DEEPLY

Fajr: preferred time
Both: the valid window starts at true dawn and ends at sunrise.
Hanafi — al-Quduri: prefers isfar, clearer dawn light.
Maliki — al-Risala commentary: prefers taghlis, earlier while still dark.
This is a preferred-time difference, not a different obligation. [37, 49]

'Asr: start of the period
Abu Hanifa's well-known position: additional shadow twice the object's height.
Malik / Maliki rule: additional shadow once its height.
Add the shadow present at solar noon in both calculations. Abu Yusuf and Muhammad hold once plus noon shadow, as al-Quduri records. [17, 37]

Maghrib: shared beginning
Both start at sunset. Maliki law strongly emphasises prompt performance and distinguishes normal/choice times from necessity times. Do not invent a fixed post-sunset waiting period for Malikis.

Combining (jam')

Hanafi: true combination normally restricted to specified Hajj combinations at 'Arafat and Muzdalifah.
Maliki: permits true combination in recognised cases, including qualifying travel, illness and weather, under detailed conditions. Not every journey or rainy moment automatically qualifies. [9, 11]

Jam' suri: first prayer at its own time's end, second at its own time's start; the Hanafi alternative outside Hajj.
Only pairs: Zuhr + 'Asr and Maghrib + 'Isha. Never Fajr.
Trap: shortening prayers and combining them are different concessions.

Jam' attribution: school rules are reported by the Dorar compilers [9] and Hanafi specialists [11]; no unverified founder quotation is claimed.

Worship: performing wudu

P2 — LEARN DEEPLY

Unit 2.1 • Qur'an 5:6

Intention (niyyah)
Hanafi — al-Quduri: Sunnah, not a condition of legal validity for wudu.
Maliki — al-'Ashmawi: obligatory, with the appropriate ritual intention.

Amount of head wiped
Hanafi — al-Quduri: at least one-quarter fulfils the obligation; all is Sunnah.
Maliki — al-'Ashmawi: wiping the whole head is obligatory.

Rubbing (dalk)
Hanafi — al-Quduri: rubbing is not independently obligatory if valid washing occurs.
Maliki — al-'Ashmawi: rubbing the washed limbs is obligatory; it need not always be performed with the palm of the hand. [29]

Continuity (fawr/muwalat)
Hanafi — al-Quduri: recommended; a long interruption does not itself undo the washed acts.
Maliki — al-'Ashmawi: required when remembered and able; forgetfulness or inability has detailed qualifications. [27, 37]

Similarities that prevent mistakes

Both treat sequence (tartib) as recommended rather than an independent obligatory requirement of wudu. Do not transplant the Hanbali sequence rule into Maliki law.
Both regard rinsing mouth/nose and wiping ears as Sunnah in wudu.
Both wash bare feet, including ankles. One complete wash can fulfil the washing obligation; three is recommended completion. [27, 37]

Worked example: correct washing without ritual intention, without rubbing, and with only a quarter-head wipe can satisfy Hanafi minimums but fails Maliki requirements.

Attribution: these authors document their schools; these are not newly invented personal rules. [27, 37]

Wudu: what invalidates it?

P2 — LEARN DEEPLY

Blood from a wound
Hanafi — al-Quduri: invalidates when it flows beyond the point of exit, actually or effectively.
Maliki — al-'Ashmawi: external wound bleeding does not itself invalidate wudu. Removing impurity for prayer is a separate question.

Vomiting
Hanafi — al-Quduri: a mouthful invalidates wudu.
Maliki — al-'Ashmawi: vomiting does not itself invalidate it. [3, 27, 37]

Ordinary contact with the opposite sex
Hanafi — al-Quduri: touch alone does not invalidate wudu; discharge has separate rules.
Maliki — al-'Ashmawi: relevant contact invalidates it when sexual pleasure is intended or experienced. Mere accidental contact without either is not automatically a nullifier. Kissing and other particular cases have further details. [27, 28]

Directly touching one's penis
Hanafi — al-Quduri: touching alone does not invalidate wudu.
Maliki — al-'Ashmawi: direct contact by the palm or relevant inner/side finger surfaces invalidates it. Do not expand this shorthand into every kind of touch of every body part. [27, 36, 37]

A useful similarity

Eating camel meat is not itself a wudu nullifier in either school. That contrast belongs to Hanafi–Hanbali, not Hanafi–Maliki.

Why they differ: interpretation of the Qur'anic wording and reconciliation of reports about touch and purification.
High-value recall: intention, whole-head wipe, rubbing, continuity, bleeding, vomiting, and pleasure in touch.

PRIORITY 3 — Finance and jobs

APPLY CONFIDENTLY • Unit 2.3

Main emphasis: debt, riba, mortgages and actual job duties. Technical comparisons do not replace case practice.

Learn a case-analysis method

Contract > activity > prohibited element > qualifications > judgement. Both schools prohibit riba and deception; location or an "Islamic" label does not establish validity.

Debt: distinguish an agreed addition for lending money from a genuine sale price. Explain recording obligations and easing hardship: Qur'an 2:280 and 2:282. Hardship is not automatic permission for interest.

Mortgage: distinguish interest-bearing lending from genuine ownership/sale/lease arrangements. Who owns, bears risk and receives payments? Never assert blanket Hanafi permission versus Maliki prohibition.

Employment: distinguish direct participation in prohibited transactions from a mixed business. Disputed duties need evidence and qualified advice, not stereotypes.

Secure comparison and similarity

Riba al-fadl: al-Salami reports Hanafi weight/volume and same kind versus Maliki nourishing/storable food, with qualifications. Neither permits loan interest. [34]
Khiyar al-majlis: both generally reject automatic cancellation just because the parties remain together; other cancellation rights exist. Al-Kasani/al-Marghinani and al-Hattab are cited in [12].

Closed-book test

Compare **an interest-bearing loan, a fixed-price credit sale and directly preparing interest contracts**. Qualify your conclusion; identify missing facts or named guidance needed. Never invent a concession.

Finance and employment

P3 — APPLY CONFIDENTLY

Unit 2.3

Sale-session option: a similarity
Hanafi (al-Kasani/al-Marghinani) and Maliki (al-Hattab), as cited in [12]: neither generally recognises khiyar al-majlis as a free cancellation right merely because parties remain together after valid offer and acceptance. Other rights, such as for defects or an agreed option, remain relevant. Do not copy the Hanbali rule into Maliki law. [12]

A real technical difference: cause of riba al-fadl
Hanafi — al-Salami reports: same kind plus measurement by weight/volume is central to the classical extension of unequal-exchange restrictions.
Maliki — al-Salami reports: for food, staple/nourishing character and storability are central, with related condiments included; currency has its own analysis.
These are simplified effective-cause comparisons, not the complete law of all delayed exchanges. Neither school permits loan interest merely because an item is not a staple. [34]

Debt, mortgages and employment

Both prohibit riba, deception and unjust enrichment. Both can recognise lawful sales, leasing and partnership; a product label alone does not establish validity.
Do not claim “Hanafi allows conventional mortgages; Maliki does not.” Attribute necessity concessions to named contemporary scholars and their conditions.
For jobs, examine the actual service, direct participation in prohibited acts, mixed businesses, hardship and lawful alternatives. Do not infer a blanket permission from a school’s use of custom or public interest.
Anchors: Qur’an 2:275, 2:280, 2:282 and 4:29.

PRIORITY 4 — Sources and method

EXPLAIN, NOT JUST NAME • Units 2.4–2.5

Earlier prediction target: primary sources, Hadith quality and direct school comparison. This does not guarantee the question pairing.

What you should be able to explain

Qur'an and Sunnah: explain derivation from texts, not just their names. Begin with shared revelation, then compare interpretation. [1]

Sahih and da'if: sahih assessment concerns a connected chain, trustworthy and precise transmitters, and absence of disqualifying irregularity or hidden defects. Da'if means requirements are not met; it is not synonymous with fabricated.

Medinan 'amal versus ordinary 'urf: explain the special evidential role of inherited Medinan practice in Maliki reasoning. It is not every local custom or every current Medinan habit. Both schools recognise qualified lawful custom. [31]

Qiyas and istihsan: explain the effective cause ('illah) and principled legal reasoning, not "personal convenience". Malikis also use analogy and forms of juristic preference. Explain maslahah and blocking harmful means without treating them as unlimited permission. [31]

Hadith trap: Malik's Muwatta contains different kinds of transmitted material, including mursal reports. Do not write "Malikis accept only sahih; Hanafis follow opinion instead of Hadith".

Closed-book test

Use wudu and Qur'an 5:6, or quru' and Qur'an 2:228: **shared text > interpretation > named authority/reporter > consequence**. Judge the extent of agreement. Do not invent an unsupported reason for a ruling. [27, 32, 37]
Revise the full Unit 2.5 sources syllabus separately; this guide does not replace it.

Foundations and legal method

P4 — EXPLAIN REASONING

Units 2.4–2.5

Hanafi: Imam Abu Hanifa (d. 767 CE), associated with Kufa. Abu Yusuf and Muhammad al-Shaybani helped shape the school.
Maliki: Imam Malik ibn Anas (d. 795 CE), associated with Medina; his Muwatta combines Prophetic reports, Companion material and legal discussion. [31]

Shared foundation

Both use the Qur'an, Sunnah, authoritative consensus and analogy. Neither is a school of "opinion instead of revelation."

The clearest methodological difference

Hanafi: particularly systematic use of qiyas and istihsan.
Maliki: distinctive weight given to the practice of the people of Medina ('amal ahl al-Madinah), understood in significant cases as inherited communal transmission of the Prophet's practice. [31]

Malik did not mean that every current habit of every person in Medina overrides the Qur'an. Jurists distinguish types of practice and their evidential weight.

Public interest and consequences

Maliki law is particularly associated with maslahah mursalah (public interest not addressed by a specific text) and sadd al-dhara'i' (blocking means to prohibited outcomes). These are disciplined methods, not permission to call anything convenient lawful.

Exam line: "Hanafi and Maliki jurists share revelation as their foundation but differ over the evidential weight of communal practice and methods for extending law."

Sources: what the differences mean

P4 — EXPLAIN REASONING

Istihsan is not only Hanafi

Hanafi jurists developed it prominently: departing from an apparent analogy for stronger legal justification.
Maliki jurists also use forms of juristic preference. Do not write “Hanafis accept istihsan, Malikis reject it.” [31]

‘Amal is not ordinary ‘urf

‘Amal ahl al-Madinah: the early Medinan community’s practice, with special authority in Maliki reasoning.
‘Urf: local custom more generally, recognised under conditions in both schools, especially in contracts and meanings of terms.
Neither means that a custom can legalise a clear prohibition.

Hadith: avoid a false good/weak split

Both study and use Hadith. Malik’s Muwatta includes mursal reports and Companion/Successor material as well as connected Prophetic reports. Do not claim “Malikis only ever use sahih reports; Hanafis accept weak ones.”
Where evidence appears to conflict, schools assess transmission, legal implication and the relationship between reports and established practice.

Shared source questions still matter

Learn progressive Meccan/Medinan revelation, ijma‘, qiyas, Companions and followers. Merely memorising practical rulings does not complete Unit 2.5. [1]

AO2: differences often concern how the Sunnah is established and interpreted, not whether the Sunnah matters.
Evidence anchor: Qur’an 4:59: refer disputes to Allah and His Messenger.

Inheritance: differences worth learning

BACKUP A — REVISE WELL

Shared fixed shares
Both: wife 1/4 without qualifying descendants, 1/8 with them; co-wives share it. Sole daughter without a son: 1/2 fixed; two or more: 2/3 together. Sons/daughters share residue at 2:1. The entire surviving family matters. [8]

Difference 1: grandfather with full sister
Only a paternal grandfather and one full sister survive.
Abu Hanifa's rule: grandfather excludes sister and takes all.
Maliki — Mughniyya reports: grandfather 2/3; sister 1/3.
Abu Yusuf and Muhammad: grandfather 2/3, sister 1/3 here. Mughniyya reports the internal disagreement. [8]

Difference 2: surplus return — radd
Assume a sole daughter and no other eligible heir.
Hanafi — Mughniyya reports: 1/2 fixed plus return of the residue; she can receive the whole net estate.
Classical Maliki with a properly functioning bayt al-mal: 1/2 fixed; residue to the public treasury, not automatic return.
Later opinions and modern legislation can allow return when the treasury is absent or unsuitable. Never claim this treasury outcome is universal in every modern Maliki jurisdiction. [8, 35]

Additional principle
Hanafi recognises distant kindred (dhawu al-arham) in the relevant absence of closer heirs; classical Maliki law gives the functioning treasury a greater role. [8]

Not a difference: father excludes his own mother in both schools. The paternal-grandmother exception belongs to Hanbali law.
Anchors: Qur'an 4:7, 4:11–12, 4:176.

Family life: marriage

BACKUP B — RETAIN COVERAGE

Unit 2.2

Guardian — wali
Hanafi — Mughniyya reports: an adult sane woman can contract her own marriage without a wali being a universal validity condition; compatibility, appropriate mahr and guardians' rights qualify the rule.
Maliki — Mughniyya reports: a wali is required in the standard position.
Do not imply that a guardian requirement makes the woman's wishes irrelevant; classical rules distinguish circumstances. [4, 13, 33]

Minimum mahr
Hanafi — Mughniyya reports: ten silver dirhams.
Maliki — Mughniyya reports: three silver dirhams or the classical quarter-dinar equivalent, with detailed rules about correcting an insufficient amount. Avoid modern currency conversions. [33]

Witnessing and publicity
Hanafi — Mughniyya reports: qualifying witnesses hear the contract; two men or one man and two women for Muslims.
Maliki — Mughniyya reports: witnessing must occur before consummation; two qualified men are used. Witnesses need not be present at the original contract in the same way. Publicity and avoidance of secrecy are especially important. [4, 33]

Secret marriage trap
A contract intentionally kept secret through instructions to witnesses is not treated simply like an unannounced but witnessed Hanafi contract. Maliki restrictions on deliberate secrecy are stronger.
Do not write "Maliki marriages need no witnesses."

Evidence anchors: Qur'an 4:4, mahr; 4:19, kind treatment.

Marriage: kinship and agreements

BACKUP B — RETAIN COVERAGE

Milk kinship: mostly agreement

Both can establish prohibited kinship through a small amount of qualifying breast milk: no five-feed minimum as the standard rule. Do not transfer the Hanbali five-feed rule to Maliki law. [15, 33]

Age qualification
Abu Hanifa: thirty months; Abu Yusuf and Muhammad: two years.
Maliki — Mughniyya reports: ordinarily two years, with limited qualifications concerning weaning and a short extension discussed by jurists. Do not present an absolute “Hanafi 30, Maliki 24” without noting the Hanafi internal disagreement. [16, 33]

Relatives and other faiths: shared basics

Both prohibit specified close blood, marital and milk relatives. Cousin marriage is not automatically forbidden; other impediments can still apply.
Both traditionally permit a Muslim man’s marriage to a qualifying chaste Jewish or Christian woman, although circumstances can make it discouraged. Neither traditionally permits a Muslim woman to marry a non-Muslim man. Both prohibit temporary mut‘ah marriage. [33]

Marriage stipulations: do not borrow Hanbali law

Do not write “Malikis enforce every no-second-wife condition in the Hanbali manner.” Bare conditions and properly framed delegated/conditional divorce have different legal effects. Both Hanafi and Maliki treatment needs the precise contract mechanism identified. [14]

AO2: shared restrictions explain why the schools remain close on the overall framework despite differences in formal safeguards.
Anchors: Qur’an 4:23; 5:5.

Friday prayer — Jumu‘ah

BACKUP C — QUICK REVIEW

Minimum congregation
Abu Hanifa and Muhammad: three besides the imam; Abu Yusuf: two. [41]
Maliki: commonly relied-upon rule requires twelve qualifying resident men besides the imam, present through the relevant sermon/prayer stages. The school also discusses a stable settled community, not merely assembling a number. [10, 22, 27]

Place of prayer
Hanafi: a permanently owned, designated mosque is not the same universal validity condition; a suitable rented prayer space can be used when other conditions are met.
Maliki: the classical designated congregational mosque requirement is more restrictive. A rented room does not normally fulfil it under that position. This is an academic comparison, not advice to disrupt a local congregation. [30]

Start time: agreement
Both require the Friday prayer after the sun passes its zenith. Do not use the Hanbali pre-zenith concession as a Maliki rule. [10]

Shared foundation

Sermons and a two-rak‘ah congregational prayer; obligation on qualifying adult Muslim men, with recognised exemptions such as illness and travel.
Daily prayer: purification, relevant impurity removed, ‘awrah covered, qiblah, valid time and intention.

AO2: Hanafi rules may facilitate Friday worship for a small or newly established community. Maliki conditions emphasise a stable communal institution.
Evidence anchor: Qur’an 62:9.

Attribution: Dorar reports conditions [10]; the Maliki specialist discusses the mosque requirement. [30]

Are later jurists allowed?

What Cambridge actually specifies

Unit 2.4 says “one of the four Sunni Imams and their Madhab”; it asks for comparison of two schools. Unit 2.5 concerns derivation and interpretation. The syllabus states no first-generation cutoff and supplies no whitelist of later jurists for these comparisons. [1]

Conclusion: later authorities can document and explain a chosen school. This is not a Cambridge guarantee that every opinion of every later scholar will answer every question.

School doctrine is not every member’s opinion

Use the standard position for the main comparison. If a named scholar differs, identify it as an internal opinion or individual preference, not as the whole madhhab.

Cambridge’s June 2024 marking principles allow valid, relevant material beyond indicative content. Q4 explicitly names Ibn Taymiyyah in the Salafi discussion. That is Section B evidence, not permission to replace Section A’s two-school comparison with unrelated individual preferences. Accuracy and relevance remain essential. [40]

Three safe formulations

• **Named early opinion:** “Abu Hanifa holds X; Abu Yusuf and Muhammad hold Y.”
• **School rule documented later:** “Al-Quduri records the Hanafi rule as X.” This does not claim he invented it.
• **Individual alternative:** “Ibn Taymiyyah prefers X, unlike the standard school rule.”

Exam priority: a correct paired comparison matters more than decorative names. These notes add names where the consulted evidence supports them; they do not reconstruct every transmission chain.

Who is being attributed?

Hanafi early authorities: Abu Hanifa al-Nu'man ibn Thabit; Qadi Abu Yusuf; Muhammad ibn al-Hasan al-Shaybani. The latter two are the Sahibayn. They do not agree on every question. [37, 41, 43]

Later Hanafi jurists: al-Quduri documents school rules; al-Kasani and al-Marghinani explain them; Ibn 'Abidin's Radd al-Muhtar is a later school reference, not a first-generation opinion. His marriage discussion is identified through the study in [43].

Hanbali: Ahmad ibn Hanbal is the founder. A riwayah is a report from Ahmad; a later jurist's derived view is not automatically a direct statement by Ahmad. Ibn Qudamah and al-Hajjawi are later school authorities. "Ashab of the school" need not mean only the founder's immediate pupils. [20, 38, 42]

Maliki: Malik ibn Anas is the founder. Ibn Abi Zayd al-Qayrawani and 'Abd al-Bari al-'Ashmawi are later school expositors, not Malik's first-generation disciples. [27, 39]

Ibn Taymiyyah and Ibn al-Qayyim: later Hanbali-associated scholars whose individual preferences need separate labelling; triple divorce is a useful example. [24, 47]

Name correction: probably Muhammad **Zahid** al-Kawthari, not "Zahir". He is a later Hanafi authority, but no particular ruling is attached to him here without a checked passage. [44]

Ibn Kathir and 'Izz ibn 'Abd al-Salam: Shafi'i scholars. Relevant tafsir or legal reasoning may support an answer, but their personal positions cannot simply stand in for the Hanafi, Hanbali or Maliki rule. [45, 46]

Attribution key and limits

“Reports” does not mean “originates”. A named manual author documents a school position; a comparative author may report another school’s doctrine without personally adopting it.

Classical texts used here

Al-Quduri, Mukhtasar: purification (obligations, Sunnah actions, nullifiers); prayer times. His prayer-times section explicitly contrasts Abu Hanifa with Abu Yusuf and Muhammad. [37]

Al-Hajjawi, Zad al-Mustaqni‘: obligatory wudu parts, quoted in [20], including mouth/nose, ears, order and continuity. Ibn ‘Uthaymin comments on that text. Do not treat the website’s preferred answer as consensus.

Ibn Qudamah, ‘Umdat al-Fiqh: ablution and nullifiers. His selected account differs on ears from the later obligation rule; see the special note in the Hanafi–Hanbali guide. [38, 42]

Al-‘Ashmawi, Matn: Maliki wudu obligations and nullifiers. **Ibn Abi Zayd, al-Risala:** purification; prayer-time commentary is linked separately. Later bracketed commentary must not automatically be attributed to the original author. [27, 39, 49]

Comparative reports still labelled honestly

Muhammad Jawad Mughniyya is the named comparative reporter for many family and inheritance entries, not the founder of these Sunni rules. Such labels establish a reported school position, not a verified individual fatwa by Abu Hanifa, Malik or Ahmad. [3, 4, 5, 6, 7, 8, 14, 25, 33]

For sales, [12] cites **al-Kasani/al-Marghinani**, **al-Hattab** and **Ibn Qudamah** for the respective schools. For riba’s effective causes, [34] is **Muhammad al-Mukhtar al-Salami’s** comparative account. Page references and websites are edition-dependent; chapter/section titles are given where checked.

Do not collapse the Sahibayn

1. ‘Asr begins

Abu Hanifa: twice the object’s height, in addition to the noon shadow.
Abu Yusuf and Muhammad: once its height, plus the noon shadow; this coincides with the other schools compared here. Al-Quduri names both students. [37]

2. Milk-kinship age limit

Abu Hanifa: thirty months.
Abu Yusuf and Muhammad: two lunar years.
This concerns the period in which nursing can establish marriage-prohibiting kinship, not a general instruction to delay weaning. [16]

3. Friday’s minimum congregation

Abu Hanifa and Muhammad: three qualifying men besides the imam, four total; the commonly relied-upon Hanafi count.
Abu Yusuf: two besides the imam, three total.
Source [41] quotes al-Kasani’s Bada’i al-Sana’i, prayer/Friday, 1:268. The consulted English Quduri translation groups Muhammad differently; this guide follows the cross-checked attribution, not that conflicting translation. [41]

4. Grandfather and full sister

For this exact two-heir case:
Abu Hanifa: grandfather takes all; sister excluded.
Abu Yusuf and Muhammad: grandfather 2/3, sister 1/3, agreeing with the Maliki and standard Hanbali result here. Mughniyya reports the disagreement. [8]

Marriage caution: the adult woman’s contracting capacity also has differing transmissions and qualifications. Do not claim every statement attributed to Abu Yusuf or Muhammad is identical; see the al-Marghinani/Ibn ‘Abidin discussion in [43].

5. How to answer for high marks

AO1: explain the ruling

Use **issue > Hanafi rule + named attribution > Maliki rule + named attribution > evidence or reason > practical effect.**

Example: "Both schools base purification on Qur'an 5:6. Al-Quduri records the Hanafi quarter-head minimum, whereas al-'Ashmawi records the Maliki whole-head requirement. The difference concerns the extent of the command, not whether purification is necessary."

AO2: direct comparison and judgement

Use **D–S–D–J**:
• Define the question's terms.
• Similarities: shared sources, objectives and rules.
• Differences: paired contrasts, not two disconnected essays.
• Judgement: return to the precise wording of the question.

For a statement: define > argument for > challenge > weighed conclusion. Pure description does not substitute for evaluation.

Model judgement: "Neither school is always more permissive. Hanafi law gives an adult woman greater independent capacity to contract marriage, while Maliki law provides broader judicial remedies against marital harm. Their approaches balance different kinds of protection."

Choose evidence that fits

Wudu question: intention, rubbing, continuity, head and nullifiers.
Family question: wali, mahr, court remedies or 'iddah.
Inheritance question: specify surviving relatives and actual shares.

These are illustrative revision paragraphs, not examiner-certified full-mark scripts. No formula guarantees a particular mark.

Final recall: Hanafi vs Maliki

Genuine differences

1. Intention in wudu: Sunnah / obligatory.
2. Head wiping: quarter / whole.
3. Rubbing: not independently obligatory / obligatory.
4. Continuity: recommended / required with qualifications.
5. Wound blood: flowing blood invalidates / not itself a nullifier.
6. Vomiting: mouthful invalidates / not itself a nullifier.
7. Touch: touch alone insufficient / pleasure intended or found matters.
8. ‘Asr: Abu Hanifa twice / once, plus noon shadow.
9. Combining: Hajj restriction / broader qualified concessions.
10. Friday: 3 besides imam / commonly 12 besides imam.
11. Wali: adult woman’s independent capacity / required.
12. Mahr: 10 dirhams / 3 dirhams or quarter-dinar equivalent.
13. Witnessing/publicity: different timing and secrecy rules.
14. Judicial relief: narrower classical grounds / broader harm remedies.
15. Quru’: menstruation / purity.
16. Non-pregnant irrevocable divorcee: support + housing / housing.
17. Grandfather/sister; radd and functioning treasury.
18. Method: qiyas/istihsan / distinctive Medinan ‘amal.

Do not invent differences

Both: sequence recommended in wudu; camel meat not a nullifier; no standard five-feed milk-kinship threshold; Friday after zenith; mainstream triple talaq three; no general sale-session cancellation option.

Revisit qualifications: these recall lines are prompts, not substitutes for the full explanations.

Attribution reminder: shorthand only; use the named source and qualifications in the full topic entries. The early-disagreement audit distinguishes Abu Hanifa from the Sahibayn.

Sources and verification

Numbers in the text refer to this register. Tap a source title to open it. School manuals and comparative works are educational references, not a substitute for a personal ruling. Web sources checked 24 October 2026.

[1] Cambridge 9488 syllabus, 2024–2026: Paper 2, printed pp. 17–19

[3] Comparative fiqh: ritual purity (M. J. Mughniyya)

[4] M. J. Mughniyya reports: marriage contract and witnesses

[5] M. J. Mughniyya reports: divorce and legal capacity

[6] M. J. Mughniyya reports: judicial dissolution

[7] M. J. Mughniyya reports: maintenance after divorce

[8] M. J. Mughniyya reports: inheritance, grandfather and return

[9] Dorar comparative fiqh: combining prayers

[10] Dorar comparative fiqh: Friday prayer conditions

[11] Hanafi explanation of apparent and true combination

[12] Habib ur Rahman, Amanullah and Mohiuddin: sale-session option; cites al-Kasani/al-Marghinani, al-Hattab and Ibn Qudamah

[13] Hanafi marriage without a guardian: qualifications

[14] M. J. Mughniyya reports: conditions stipulated by a wife

Sources and verification — continued

[15] Hanafi and other views on milk kinship: number of feeds

[16] Hanafi internal disagreement on the nursing age limit

[17] Prayer times: the two shadow calculations for Asr

[20] Al-Hajjawi, Zad al-Mustaqni‘, obligatory wudu parts, quoted with Ibn ‘Uthaymin’s commentary

[22] Hanafi–Hanbali congregation counts: supplementary summary

[24] Triple divorce: majority position distinguished from alternatives

[25] M. J. Mughniyya reports: khul and its wording

[27] ‘Abd al-Bari al-‘Ashmawi, Matn al-‘Ashmawiyyah: Maliki purification and prayer, with translator’s notes

[28] Maliki ruling: pleasure intended or experienced in touch

[29] Maliki ruling: rubbing in purification

[30] Maliki Friday prayer: designated mosque and rented spaces

[31] Encyclopaedia Britannica: Maliki legal method

[32] Jordan Iftaa: quru as menstruation or purity

Sources and verification — continued

[33] M. J. Mughniyya reports: minimum mahr and kinship

[34] Muhammad al-Mukhtar al-Salami: Al-Qiyas (Analogy) and its Modern Application; comparative causes of riba

[35] School-dependent inheritance: classical treasury qualification

[36] Hanafi non-nullification by touching the private parts

[37] Al-Quduri, Mukhtasar: purification and prayer; English translation (Friday attribution cross-checked against [41])

[38] Ibn Qudamah, Umdat al-Fiqh: ablution and its nullifiers (one selected Hanbali account, not every later standard rule)

[39] Ibn Abi Zayd al-Qayrawani, al-Risala: purification text; prayer-time commentary separately linked at [49]

[40] Cambridge June 2024 Paper 22 mark scheme: generic principles and Q4, Ibn Taymiyyah and Salafi positions

[41] Nabil Ahmed, reviewed by Abdul Waheed: Friday minimum; quotes al-Kasani, Bada'i al-Sana'i, prayer/Friday, 1:268

[42] Hanbali ear-wiping alternatives: quotes Ibn Qudamah, al-Mughni 1:90, and al-Khallal's reports from Ahmad

[43] Female agency in Hanafi marriage: al-Marghinani and Ibn Abidin, Radd al-Muhtar; historical qualifications

[44] Muhammad Zahid al-Kawthari: name and Hanafi affiliation (biographical identification only)

[45] Ibn Kathir: Shafi'i training and scholarly biography (identification only)

Sources and verification — continued

[46] ‘Izz al-Din ibn ‘Abd al-Salam: Shafi‘i affiliation (biographical identification only)

[47] Triple divorce: cites Ibn al-Qayyim, Zad al-Ma‘ad, defending the one-divorce position; distinguishes disputed early attributions

[49] Al-Risala, chapter 8, with commentary: beginning of the prayer time preferred, with qualifications

Editorial note: classical school positions, internal alternatives and modern statutes are distinguished where material. Syllabus coverage is defined by Cambridge [1], not by every topic discussed in a fiqh reference. Examples assume the stated heirs/circumstances and omit unrelated complexities.